

24STCV16620 24STCV16620

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-09

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Case Number: 24STCV16620 Hearing Date: July 9, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV16620

LAURA

POLTE-HORNSTEIN v. VAN FREIGHT LINES CORPORATION

July

9, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT KING MEAT SERVICE, INC.'S MOTION FOR ORDER ESTABLISHING ADMISSIONS;
AND REQUEST FOR SANCTIONS.

BRULING:

The Motion is denied as to the request to establish admissions but granted as to the request for sanctions.

On or before September 1, 2026, Defendant/Cross-Defendant VAN FREIGHT LINES CORPORATION shall pay discovery sanctions in the sum of \$1,960.00 to Defendant/Cross-Complainant KING MEAT SERVICE, INC.

I.

BACKGROUND

The Court incorporates by reference the Background section of the Minutes entered on July 15, 2025.

On January 12, 2026, Defendant/Cross-Complainant KING MEAT SERVICE, INC. (Cross-Complainant) filed the Motion for an Order establishing admissions against Defendant/Cross-Defendant VAN FREIGHT LINES CORPORATION (Cross-Defendant) Additionally, Cross-Complainant requests sanctions against Cross-Defendant in the amount of \$1,960.00 as sanctions.

Cross-Defendant advocates denying, arguing that the responses and verification have been served, and delays are explained by insured principal hospitalization, a missing entity owner, and insurer intervention. “[T]o preserve its right of subrogation, the insurance company must ... interplead itself into any action brought by the insured against the third party tortfeasor,…” (Progressive West Ins. Co. v. Superior Court (2005) 135 Cal.App.4th 263, 273.)

II.

LEGAL STANDARD

“[A] motion to have admission requests deemed admitted may not be granted where the record establishes ... that (1) proposed responses to the requests have been served prior to the hearing on the motion and (2) such responses are in substantial compliance with the provisions of section 2033, subdivision (f)(1).” (Tobin v. Oris (1992) 3 Cal.App.4th 814, 828, overruled on other grounds by Wilcox v. Birtwhistle (1999) 21 Cal.4th 973, 983, fn.12.) Courts evaluate tardy responses to requests for admissions, in toto, to determine whether they substantially comply with the code, and do

not evaluate each individual response. (St.

Mary v. Superior Court (2013) 223 Cal.App.4th 762, 779-780.)

“[T]he assertion of

waived objections does not necessarily prevent ‘substantial compliance with

Section 2033.220’ as required by section 2033.280(c). Compliance analysis

should prioritize the nature of the substantive answers in the proposed

response. While waived objections should be a factor in the assessment, their

presence should primarily be addressed through the amount of mandatory monetary

sanctions imposed.” (Katayama v. Continental Investment Group (2024) 105

Cal.App.5th 898, 909-910.) If a party objects to

discovery requests, and also provides complete responses to the requests, then

nothing is left to address in a motion to compel. (American Federation of State, County & Municipal Employees v.

Metropolitan Water Dist. (2005) 126 Cal.App.4th 247, 269 [addressing

requests for admissions].)

III.

ANALYSIS

Cross-Complainant states

that Cross-Defendant has responded after great delay, inexplicably after

agreeing to respond during meeting and conferring.

The Opposition reports service

of the initial response on June 8, 2026, and justifications for delays,

including time for counsel's and an investigator's searching, in April and

ongoing, for a missing insured owner of the entity having a principal who is

indefinitely hospitalized and unable to participate in discovery, and the intervention

of the insurer in this action on October 16, 2025.

“Under Code of Civil

Procedure section 2033.280, it is mandatory that the court impose a monetary

sanction on the party or attorney whose failure to serve a timely response to a

request for admission necessitates a motion to compel responses....” (Stover v. Bruntz (2017) 12 Cal.App.5th

19, 31–32. Accord, Appleton v. Superior

Court (1988) 206 Cal.App.3d 632, 635.)

Here, the Opposition shows

that the sought responses in substantial compliance have been served before the

hearing, which means that admissions may not be deemed admitted.

As for sanctions, they are mandatory against a party causing the need for the motion. Here, the client created that need, by not providing its whereabouts to counsel or the Court. The failure of clients to serve responses, due to their failure to keep counsel informed of their whereabouts, may be found to be a willful failure to comply with discovery requirements. (Steven M. Garber & Associates v. Eskandarian (2007) 150 Cal.App.4th 813, 821; Cornwall v. Santa Monica Dairy (1977) 66 Cal.App.3d 250, 253.)

IV.

CONCLUSION

Accordingly, the Court denies the request to deem admitted but grants the sanctions request against Cross-Defendant.